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IN THE SUPERIOR COURT OF DEKALB COUNTY
STATE OF GEORGIA

[redacted] L. [redacted], CIVIL ACTION FILE NO.: Plaintiff, 25CV10635

v.

FIRST ACCEPTANCE INSURANCE
COMPANY OF GEORGIA, INC., et al.,
Defendants.

PLAINTIFF'S NOTICE OF DEFENDANT'S WAIVER OF OBJECTION TO NON-PARTY SUBPOENA, MOTION FOR SANCTIONS FOR IMPROPER INTERFERENCE WITH DISCOVERY, AND REQUEST TO DENY OR DEFER EXPEDITED ORAL ARGUMENT

INTRODUCTION

Plaintiff files this Notice and Motion to place a clear procedural record before the Court. A valid subpoena was served on a non-party. The Defendant did not object within the time required by law. No motion was filed asking the Court to quash, stay, or otherwise stop the subpoena. No judge entered an order doing so.

The subpoena was nevertheless paused, but only after the Defendant began pushing for expedited oral argument and informal emails were exchanged with the non-party outside of Court supervision.

Plaintiff asks the Court to enforce the governing rules, recognize waiver, and instruct de fense counsel to cease interference with lawful non-party discovery.

I. FACTUAL AND PROCEDURAL TIMELINE (AS IT OCCURRED)

1. December 23, 2025 - Plaintiff served a Subpoena for Production of Documents on the Georgia Department of Revenue ("DOR") pursuant to O.C.G.A. § 9-11-45.

2. Georgia law requires that any objection to a non-party subpoena be served within ten (10) days after service. O.C.G.A. § 9-11-45(a)(1)(B).

3. December 27, 2025 - Plaintiff filed proof of service through e-filing. (Pro se Plaintiff's

DOB). 1

4. December 29, 2025 - The Clerk accepted and docketed the proof of service.

5. January 2, 2026 - Defendant filed a Motion to Dismiss addressing the complaint and pend ing motions. Defendant did not file a motion to quash, a motion for protective order, or any written objection to the subpoena.

6. January 8-10, 2026 - Even accounting for holidays and business days, the ten-day objection period expired. Defendant filed and served no objection as required by O.C.G.A. § 9-11- 45(a)(1)(B).

7. January 20, 2026 - Defendant's counsel began requesting expedited oral argument on the Motion to Dismiss, including transmitting courtesy copies to Court staff. This occurred three days before the subpoena's production date.

8. January 21, 2026 - Stephen Harris, Deputy General Counsel for the Georgia Department of Revenue, emailed Plaintiff and Defendant's counsel to ask whether there were objections to the subpoena. Mr. Harris had taken over the matter from Amy Bushyeager, Agency Compliance Officer and Managing Attorney.

9. January 21, 2026 - Defendant's counsel responded by email asserting that discovery was "stayed" and requested that the Department not produce records. No court order was attached. No motion requesting such relief had been filed. Counsel stated:

   > "Yes we still plan on objecting and will be filing such objection during the allotted response period."

   This confirms that he was merely drafting a response, not that he had already filed one, relying on the Civil Reform Act to claim he still had time to object.

10. January 21, 2026 Following these emails, the Department stated that responsive records existed within its DRIVES system and that it would not produce records pending agree ment between the parties or a ruling from the Court, while indicating that records would be preserved.

11. The result is that a subpoena served on December 23, 2025 and not objected to within the Rule 45 deadline was paused only after informal communications occurred and after Defendant sought an accelerated hearing.

II. DEFENDANT WAIVED THE RIGHT TO OBJECT TO THE NON-PARTY SUBPOENA

Georgia law requires objections to a non-party subpoena to be made in writing and within the time prescribed by statute. O.C.G.A. § 9-11-45(a)(1)(B).

Defendant did not object within the required period and did not seek relief from the Court. Once the deadline passed, Defendant waived the right to object. That waiver cannot be cured or revived through later emails or informal communications.

III. NO STATUTORY OR COURT-ORDERED STAY APPLIES TO THIS SUB POENA

Defendant attempts to rely on O.C.G.A. § 9-11-12(j) to retrospectively validate their failure to object. This is a misapplication of the statute. Section 9-11-12(j) operates as a "pause" button for pending litigation; it does not operate as a "rewind" button to cure procedural waivers that have already occurred.

Because the Defendant failed to file a timely objection, that right was waived. The sub sequent filing or pendency of a Motion to Dismiss does not revive a waived right, nor does it empower defense counsel to unilaterally halt a non-party subpoena via email without a protective order. The statute stays proceedings; it does not deputize counsel to issue orders to State agencies.

Furthermore, the legislative intent of the 2025 Civil Reform Act is to protect defendants from the burden and expense of discovery in meritless cases. Compliance with this non-party subpoena imposes ZERO burden, cost, or work on the Defendant. The Defendant's attempt to block this third-party production serves no protective purpose under the statute; it serves only to suppress evidence.

IV. EMAILS DO NOT REPLACE MOTIONS OR COURT ORDERS

Georgia law requires discovery disputes to be handled through filed motions and court or ders. See O.C.G.A. §§ 9-11-7, 9-11-26, and 9-11-45.

An email is not:

- a Rule 45 objection,
- a motion to quash,
- a protective order, or
- a court order.

Because no proper motion was filed and no order entered, Defendant's email did not lawfully stop the subpoena or revive waived objections.

V. MOTION FOR SANCTIONS FOR INTERFERENCE WITH NON-PARTY DISCOVERY

After missing the objection deadline, Defendant did not seek relief from the Court. Instead, Defendant responded to a non-party inquiry by asserting a discovery stay that had not been ordered, resulting in lawful non-party discovery being halted outside Court supervision. Coun sel wrote:

> "This might be a bit of a matter of first impression in Georgia given the recent

> reforms to the Civil Practice Act last year, however, we believe Discovery in this matter is currently stayed pursuant to O.C.G.A. 9-11-12(j)(1), and the stay applies to non-party discovery. Please see attached for the Motion to dismiss which we

filed on January 2nd which shall operate to stay all discovery in this matter and also operate to toll the time to object to non-party discovery. Please confirm that you are in agreement on this position."

This Court possesses the inherent authority to control the discovery process and ensure that its subpoenas are respected. Defendant's conduct—interfering with a valid subpoena via informal email after the objection deadline expired—usurps that authority. While O.C.G.A. § 9-11-37 authorizes sanctions for such obstruction, Plaintiff primarily seeks an order restoring the status quo: immediate production of the documents.
Plaintiff respectfully requests that the Court:

1. Find that Defendant waived all objections to the subpoena served December 23, 2025; 2.

Order immediate compliance with the subpoena;

3. Impose appropriate sanctions or corrective measures for improper interference with non party discovery, as the Court deems just; and

4. Prohibit further attempts to delay or block non-party compliance except by filed motion or court order.

VI. REQUEST TO DENY OR DEFER EXPEDITED ORAL ARGUMENT

He then responded to an inquiry from Harris, asserting that his Motion to Dismiss was valid and that it retroactively paused the DOR subpoena.
Plaintiff asks the Court to allow the case to proceed in its normal order and to address waiver and discovery interference before hearing accelerated dismissal arguments.

VII. CONCLUSION

The subpoena was properly served. The deadline to object passed. No objection or motion was filed. No judge stopped the subpoena. Emails did.
Plaintiff asks the Court to enforce the rules and restore the process.
The complaint was redacted to protect the pro se Plaintiff's right to counsel and to pre vent unnecessary public exposure of personal identifying information. Plaintiff respectfully requests a ruling on the pending Motion to Seal and/or Redact to permit in-camera review of the unredacted complaint.
Plaintiff further requests that the pending Motion for Protective Order be granted to en sure that any disclosed information is used solely for purposes relevant to the allegations in this case.

A full legal audit of citations relied upon is attached for the Court's convenience. 4

01/23/2026

Respectfully submitted, this day of **January**, 2026.

[redacted] **L.** [redacted]
Plaintiff, Pro Se
[redacted]
[redacted]
Atlanta, GA [redacted]
Phone: [redacted]
Email: [redacted]@gmail.com

CERTIFICATE OF SERVICE

I hereby certify that I have this day served a true and correct copy of the within and foregoing **PLAINTIFF'S NOTICE OF DEFENDANT'S WAIVER OF OBJECTION TO NON-PARTY SUBPOENA, MOTION FOR SANCTIONS, AND REQUEST TO DENY OR DEFER EXPEDITED ORAL ARGUMENT** upon all parties to this matter by depositing the same in the U.S. Mail with adequate postage affixed, and/or via electronic mail, addressed as follows:

SERVED UPON:
Cameron E. Jackson
Jackson Law Group
9755 Dogwood Rd, Ste. 344
Roswell, GA 30075
Email: Cameron@jacksonlawgroup.net

01/23/2026

[redacted] **L.** [redacted]
Plaintiff, Pro Se